

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

15. COUNTY OF EL DORADO DCSS V. NATHAN SPROULE (OTHER PARENT: JAYCEE BERGESON)

24FL0279

Respondent filed a Request for Order (RFO) on March 9, 2026, seeking modification of the current child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 8, 2026 and a review hearing on June 4, 2026. Proof of Service shows Other Parent was served with some, but not all the required documents on March 13, 2026. There is no Proof of Service showing Petitioner was properly served.

Only Respondent appeared at the CCRC appointment on April 8, 2026. As such, a single parent report with no agreements or recommendations was filed with the court on May 19, 2026. Copies were mailed to the parties on May 21st.

The court drops the matter from calendar due to the lack of proper service. All prior orders remain in full force and effect.

TENTATIVE RULING #15: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. CLARA STEWART V. FRANCISCO MARIN

SFL20190229

This matter is pending receipt and review of the 3111 report. The parties last appeared before the court on April 23, 2026, at which time the court stayed its tentative ruling. A review hearing was set for the present date.

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking child support, attorney's fees, sanctions and therapy orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 4, 2026.

Petitioner filed and served her Responsive Declaration to Request for Order and her Memorandum of Points and Authorities on March 19th. She filed and served an Amended Memorandum of Points and Authorities on March 20th and a Supplemental Declaration on March 24th.

The court received the Family Code section 3111 report on March 26, 2026.

Respondent submitted a Reply Declaration to the 3111 Report on April 10, 2026. It was served on Petitioner and Minor's Counsel the same day. Respondent requests the exchange location for non-school exchanges remain at Town Center, in El Dorado Hills as the parties have been exercising. Respondent also requests that short overnight trips on weekends required the parties to provide each other notice and provide the location of where the overnights will be taking place. Respondent also seeks clarification regarding the recommendations as to casinos and racetracks.

Petitioner filed a Reply Declaration on April 17, 2026. It was served on Respondent and Minor's Counsel the same day. Petitioner seeks further clarifying orders as well. Petitioner requests that the terms "notice" and "provide information" means that notice or the provision of information to be in writing. Petitioner requests the minor have access to a smart watch or smart device for communication and safety purposes. Petitioner proposes changes to provisions 6.b. and 6.d.. Petitioner requests Kristin Kaminski or other mutually agreed licensed provider for family therapy.

Respondent filed a Declaration as well as an updated Income and Expense Declaration on May 22, 2026. It was served the same day. Respondent is requesting the court adopt its prior tentative ruling as well as adopting the 2-2-5-5 schedule as Minor's Counsel recommended. Further, Respondent is withdrawing his CCP 128.5 sanctions request. Respondent requests that the focus of counseling be on reunification.